

Suncoast Process & Investigations

Return of Service

COLONIAL MANOR

PLAINTIFF / PETITIONER

VS

KNOX & UNKNOWN TENANT

DEFENDANT / RESPONDENT

CASE #: 2015 CC 3560

I Dennis Ogg, being first duly sworn, depose and say: that I am over the age of 18 years and not a party to this action, and that within the boundaries of the state where service was effected, I was authorized by law to perform said service.

Received this process on 9 / 25 / 15 at _____ : _____ (AM) (PM) and served same by delivery to the within named person a true copy of this process, a copy of the Complaint, petition, or other pleading or paper with the date and hour of service endorsed thereon by me to:

DAVID KNOX

NAME OF PERSON / ENTITY BEING SERVED

on 9-28-15 at 10:55

DATE

TIME

Address: 900 9TH AVE E #192

PALMETTO FL

MANNER OF SERVICE:

- () Individual Service: Pursuant to F.S. 48.031 (1)
- () Substitute Service: Pursuant to F.S. 48.031 (1) (2)(A) (Name) _____ (Relationship) _____
- () Corporate Service: Pursuant to F.S. 48.081 (1)(2) or (3) (Name) _____ (Title) _____
- (x) Posted Service: Pursuant to F.S. 83.22 by attaching a copy of this process, together with any attachments to a conspicuous place on the property described herein after two or more attempts to obtain personal or substitute service at least six hours apart. Attempts at service: 9/25/15 at 2:10 (AM) (PM) and 9/28/15 at 10:55 (AM) (PM)
- () Government Agency: Pursuant to F.S. 48.111 or F.S. 121 (Name) _____ (Title) _____
- () Non-Service: For the reason that after diligent search and inquiry, _____ could not be found in _____ County, Florida.

DOCUMENTS SERVED:

- | | |
|---|--|
| _____ Subpoena Duces Tecum without Deposition | _____ Subpoena Duces Tecum for Deposition |
| _____ Subpoena for Deposition | _____ Subpoena Duces Tecum for Trial / Hearing |
| _____ Subpoena for Trial | (x) _____ Eviction Summons / Residential |
| _____ Original Summons and Complaint. Attachments : _____ | |
| _____ Other : _____ | |

Service Attempts / Other Notes for Service:

Date Time
9-25-15 2:10 MOBILE HOME IS VACANT
9-28-15 10:55 VACANT POSTED

Military Status: Yes ___ No ___

Under penalties of perjury, I declare that I have read the forgoing verified return of service and that the facts stated in it are true.

Notary Not Required Pursuant to F.S. 92.525.

Date: 9-25-15

Further affiant saith not :

SIGNATURE OF PROCESS SERVER

CPS # 0201

Dennis Ogg -- CPS # 0201

PRINTED NAME OF PROCESS SERVER

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IN THE COUNTY COURT OF THE TWELFTH JUDICIAL CIRCUIT
IN AND FOR MANATEE COUNTY, FLORIDA

EVICTIION SUMMONS/RESIDENTIAL

CASE NUMBER: 2015-CC 3560

PLAINTIFF/PETITIONER	vs. DEFENDANT/RESPONDENT
COLONIAL MANOR MHC HOLDINGS, LLC	DAVID KNOX and UNKNOWN TENANT(s)

TO: **DAVID KNOX**
900 - 9th Avenue East, Lot #192
Palmetto, Florida 34221

PLEASE READ CAREFULLY

You are being sued by COLONIAL MANOR MHC HOLDINGS, LLC, to require you to move out of the place where you are living for the reasons given in the attached complaint.

You are entitled to a trial to determine whether you can be required to move, but you **MUST** do ALL of the things listed below. **You must do them within (5) days (not including Saturday, Sunday, or any legal holiday) after the date these papers were given to you or to a person who lives with you or were posted at your home.**

THE THINGS YOU MUST DO ARE AS FOLLOWS:

- (1) Write down the reason(s) why you think you should not be forced to move. The written reasons(s) must be given to the clerk of the Court at the Manatee County Courthouse, Post Office Box 25400, Bradenton, Florida, 34206.
- (2) Mail or give a copy of your written reason(s) to:

William C. Price, III, Esquire
WILLIAM C. PRICE, III, P.A.
522 Twelfth Street West
Bradenton, Florida 34205
Telephone: (941) 747-8001
Attorney for Plaintiff

- (3) Pay to the clerk of court the amount of rent that the attached complaint claims to be due and any rent that becomes due until the lawsuit is over. If you believe that the amount claimed

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in the complaint is incorrect, you should file with the clerk of the court a motion to have the court determine the amount to be paid. If you file a motion, you must attached to the motion any documents supporting your position and mail or give a copy of the motion to the Plaintiff/Plaintiff's Attorney.

- (4) If you file a motion to have the court determine the amount of rent to be paid to the clerk of the court, you must immediately contact the office of the judge to whom the case is assigned to schedule a hearing to decide what amount should be paid to the clerk of the court while the lawsuit is pending.

IF YOU DO NOT DO ALL OF THE THINGS SPECIFIED ABOVE WITHIN 5 WORKING DAYS AFTER THE DATE THAT THESE PAPERS WERE GIVEN TO YOU OR TO A PERSON WHO LIVES WITH YOU OR WERE POSTED AT YOUR HOME, YOU MAY BE EVICTED WITHOUT A HEARING OR FURTHER NOTICE.

- (5) If the attached complaint also contains a claim for money damages (such as unpaid rent), you must respond to that claim separately. You must write down the reasons why you believe that you do not owe the money claimed. The written reasons must be given to the clerk of the court at the address specified in paragraph (1) above, and you must mail or give a copy of your written reasons to the Plaintiff/Plaintiff's Attorney at the address specified in paragraph (2) above. This must be done within 20 days after the date these papers were given to you or to a person who lives with you or were posted at your home. This obligation is separate from the requirement of answering the claim for eviction within 5 working days after these papers were given to you or to a person who lives with you or were posted at your home.

THE STATE OF FLORIDA:

To Each Sheriff of the State: You are commanded to serve this summons and a copy of the complaint in this lawsuit on the above named defendant.

DATED on 9-23-15

ANGELINA M. COLONNESO
Clerk Ad Interim of Circuit Court and
Comptroller of Manatee County
Post Office Box 25400
Bradenton, Florida 34206



By: Susan M. Himes
Deputy Clerk

NOTICE: If you are a person with a disability who needs any accommodation in order to participate in this proceeding, you are entitled, at no cost to you, to the provision of certain assistance. Please contact the Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206, (941) 741-4062, at least seven (7) days before your scheduled court appearance, or immediately upon receiving this notification if the time before the scheduled appearance is less than seven (7) days; if you are hearing or voice impaired, call 711.

Si usted es una persona con una incapacidad que necesita cualquier acomodacion en orden de participar en el procedimiento, Usted esta intitulado, a no costo suyo, la provision de cierta ayuda. Favor de contactar al Manatee County Jury Office, Post Office Box 25400, Bradenton, Florida, 34206 ((41) 741-4062, dentro de siete dias laborables antes de su audiencia tribunal or imediante mente al recibir esta notificacion sisu audiencia tribunal es menos de siete dias: si usted tiene una incapacidad de oir o hablar llame al 711.

If you cannot afford an attorney, contact Gulfcoast Legal Services at (941) 746-6151 or www.gulfcoastlegal.org, or Legal Aid of Manasota at (941) 747-1628 or www.legalaidofmanasota.org. If you do not qualify for free legal assistance or do not know an attorney, you may call an attorney referral service (listed in the telephone book) or cntact the Florida Bar Lawyer Referral Service at (800) 342-8011.